

CHAPTER 18.

An Act to amend the Married Women's Property Act, 1882. [21st August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) A married woman is able, without her husband, to dispose of, or to join in disposing of, real or personal property held by her solely or jointly with any other person as trustee or personal representative in like manner as if she were a femme sole. Dispositions of trust estates by married women.

(2) This section operates to render valid and confirm all such dispositions made after the thirty-first day of December one thousand eight hundred and eighty-two, whether before or after the commencement of this Act, but, where any title or right has been acquired through or with the concurrence of the husband before the commencement of this Act, that title or right shall prevail over any title or right which would otherwise be rendered valid by this section.

2.—(1) Notwithstanding section nineteen of the Married Women's Property Act, 1882, a settlement or agreement for a settlement made after the commencement of this Act by the husband or intended husband, whether before or after marriage, respecting the property of any woman he may marry or have married, shall not be valid unless it is executed by her if she is of full age, or confirmed by her after she attains full age. Settlements of a married woman's separate property. 45 & 46 Vict. c. 75.

(2) But if she dies an infant any covenant or disposition by her husband contained in the settlement or agreement shall bind or pass any interest in any property of hers to which he may become entitled on her death and which he could have bound or disposed of if this Act had not been passed.

(3) Nothing in this section shall render invalid any settlement or agreement for a settlement made or to be made under the provisions of the Infant Settlements Act, 1855. 18 & 19 Vict. c. 43.

3.—(1) Where a married woman would, if single, be the protector of a settlement in respect of a prior estate, which is by virtue of the Married Women's Property Act, 1882, made her separate property, then she alone shall, in respect of that estate, be the protector of the settlement. Married woman entitled to prior estate to be protector of settlement alone.

(2) This section applies to disentailing assurances and surrenders made after the thirty-first day of December one thousand eight hundred and eighty-two, and as well before as after the commencement of this Act.

4.—(1) This Act may be cited as the Married Women's Property Act, 1907. Short title; commencement; construction.

(2) This Act shall come into operation on the first day of January one thousand nine hundred and eight.

45 & 46 Vict.
c. 75.

47 Vict. c. 14.

56 & 57 Vict.
c. 63.

(3) This Act shall not extend to Scotland.

(4) This Act shall be construed with the Married Women's Property Acts, 1882, 1884, and 1893, and those Acts and this Act may be cited together as the Married Women's Property Acts, 1882 to 1907.

CHAPTER 19.

An Act to enable portion of a term of imprisonment in Ireland to be remitted as a reward for good conduct.

[21st August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Remissions for
industry and
good conduct.

1. Provision may be made by prison rules for enabling a prisoner sentenced to imprisonment, whether by one sentence or cumulative sentences, for a period prescribed by the rules, to earn by special industry and good conduct a remission of a portion of his imprisonment, and on his discharge his sentence shall be deemed to have expired.

Rules.

2. Prison rules for the purposes of this Act may be made by the General Prisons Board for Ireland, subject to the approval of the Lord Lieutenant and Privy Council, and section fifty-seven of the General Prisons (Ireland) Act, 1877, which provides conditions applicable to rules under that Act, shall apply to rules under this Act.

40 & 41 Vict.
c. 49.Commence-
ment of Act.

3. This Act shall come into operation on the date at which the first rules made thereunder come into force.

Short title and
citation.

4. This Act may be cited as the Prisons (Ireland) Act, 1907, and may be cited with the Prisons (Ireland) Acts, 1826 to 1899.

CHAPTER 20.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March one thousand nine hundred and eight, and to appropriate the Supplies granted in this Session of Parliament.

[21st August 1907.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to graft unto Your Majesty the sum herein-after mentioned; and do therefore most